



File No.: EXP202309500

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On 25/06/2023, a complaint was filed with the Spanish Agency for Data Protection against the CITY COUNCIL OF SIERO with NIF P3306600B. The reasons for the complaint are as follows:

An employee of the City Council states that there is an incorrect use of the local police management software program, called EUROCOP, which allows access to data from the DGT, Police Reports, and VIOGEN. The administration of this program is handled by an administrative assistant not belonging to the Police Force, who has provided several Officers with the App of this program for personal mobile phones.

No documents were submitted along with the complaint.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts, by virtue of the functions assigned to the control Authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1.- An information request was made to the aforementioned City Council regarding the reported facts, and on August 23, 2023, this Agency received a letter from the cited City Council stating, among other things, the following aspects:

- The City Council, which holds a certificate in the National Security Scheme, medium category, has access within the EUROCOP system to the DGT, Register, and VIOGEN, which is done through a web service from EUROCOP via the corresponding certificate and agreement that the City Council has signed with the DGT and the Ministry of the Interior, with the categories of consulted data being identifying, personal, and, in some cases, family data.

- The personnel with access profiles to the data of EUROCOP are officials of the City Council of Siero, belonging to the local police force or the Municipal Personnel department. In this regard, every official, worker, or personnel linked to the City Council of Siero, upon their incorporation, signs a confidentiality declaration, the purpose of which is to assume the terms and conditions under which they will maintain the confidentiality of the information and documentation of the City Council to which they have access. Among these is the person responsible for information technologies of the City Council. No employee and/or trainer of EUROCOP could access the system without the request, authorization, and permissions of the

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City Council, which would only be for consultations, operational support, or technical assistance.

- Access to the system is possible from mobile devices and computers, but it is not possible in either case to save, for future reference, the username and password. Regarding the security measures for accessing the different systems that make up the technological platform of EUROCOP, the investigation highlights two-factor authentication and access auditing to all system modules by authorized users.

They conclude that the processing of data by the officials of the Local Police and the City Council of Siero is carried out in compliance with a legal obligation and in the exercise of public powers, and that the City Council of Siero has taken and continues to take appropriate measures to ensure that the principles related to the processing of personal data are respected.

And they attach the following documentation:

- Contract signed with the entity EUROCOP SECURITY SYSTEMS, S.L., which includes, in addition to

the contracting conditions, annexes I and II listing the certifications and security measures for access and authentication of the systems of this entity.

- List of personnel with access to the systems.

2.- As the responsibility and connection of the person indicated in the complaint were not clear, further information was requested from the City Council of Siero. As a result of this request, on April 11, 2024, a letter was received at this Agency from that City Council informing, among other matters, of the following:

- List of the five administrators of the EUROCOP system, indicating that all of them are public officials of the City Council of Siero belonging to the Local Police Corps and the municipal personnel and IT department.

- That access to the EUROCOP system is possible from both mobile devices and computers, but knowing that access could be made from mobile devices, access to the Register and the DGT was ordered to be disabled from both mobile devices and computers. They add that the VIOGEN system was never accessed from EUROCOP.

- That specific security measures have not been implemented on mobile phones, limiting access security to the EUROCOP system to personal credentials.

3.- Requested the City Council to provide some additional clarifications, on May 15, 2024, a letter was received at this Agency with the requested information stating that the only two individuals with administrator profiles for the EUROCOP system, who do not belong to the Police Corps, are the Head of the Office of Information and Communication Technologies (ICT) and the person responsible for security and compliance with the National Security Scheme (ENS), and an administrative assistant from the Personnel Department. They attach to this letter copies of the documents signed by the five administrators regarding their commitment to confidentiality of the information in the City Council's works. They conclude by stating that, once access to the Register and the DGT within the EUROCOP system was ordered to be disabled, this system is only used to request their permits, shift changes, and vacations, which are subsequently incorporated into the schedule of the C/ Jorge Juan, 6

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Local Police. Furthermore, through the EUROCOP system, Local Police officers register calls received where citizens primarily request police services for help, assistance, and reporting. They maintain, therefore, that no access is made to any platform containing personal data through the EUROCOP system.

4.- On June 18, 2024, supplementary documents are submitted, informing this Agency that access to vehicle and driver data, provided by the General Directorate of Traffic to this Police, is being carried out solely by the officials of this Local Police from the computer devices of the City Council, once accessed with a username and password to the municipal server. Regarding the census data, access to the Municipal Register has been requested in two batches by a group of agents performing various functions with the following criteria: 2 members from each working group, the two Judicial Police agents, the administrative assistant of the Local Police, and the agents in charge of the complaints office. For this purpose, reports were issued from this headquarters to the IT services of the City Council dated January 9, 2024, and April 22, 2024, with the rest of the officials currently unable to access the aforementioned data. As for the data of particularly sensitive victims, due to gender-based violence, only the two victim monitoring Police agents can access it, as the application used, the VIOGEN system belonging to the Ministry of the Interior, requires a user and password issued by the National Police Corps.

Although it was requested, there is no record in the information sent by this City Council that internal audits of access to the EUROCOP system have been conducted.

And they attach the following documentation:

- Resolution agreeing to full adherence to the Agreement signed between the Autonomous Organization Provincial Traffic Headquarters and the Spanish Federation of Municipalities and Provinces (FEMP) for the exchange of information and mutual administrative collaboration.

- Internal regulations on the use of resources and information systems in accordance with the ENS
- Requests for access to the population register dated January 9, 2024, and April 22, 2024, addressed to the statistics department of the City Council listing the officials for whom access is requested.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Integrity and confidentiality

Letter f) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

III

Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article."

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4. The data controller and the data processor shall take measures to ensure that any person acting

under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law."

IV

Based on the above, according to this City Council, the EUROCCOP system is currently only used for administrative matters and for recording calls from citizens primarily requesting police services for help, assistance, and reporting. Access to data provided by the DGT to this Police is being carried out solely by Local Police officials from the City Council's computer devices, requiring the use of credentials for access. Regarding the census data, access to the municipal register has been requested in two batches by 2 members of each working group, the two Judicial Police agents, the administrative assistant of the Local Police, and the agents in charge of the reporting office, with the rest of the officials currently unable to access this data. They add that access to the VIOGEN system has never been made through the EUROCCOP system and that only the two Victim Follow-up Police agents can access it, as this system belonging to the Ministry of the Interior requires a username and password issued by the National Police Corps.

Finally, it is verified that all administrators of the EUROCCOP system, both police agents and system administrators, including the administrative assistant of the personnel department, signed the confidentiality obligation document required by the City Council regarding the information and data processed by the City Council.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing and in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF SIERO and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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